

ELIZABETH II



1966 CHAPTER xxvi

An Act to amend the law relating to the registration of deeds and other matters affecting lands and hereditaments within the three ridings of the county of York; to confer further powers upon the county councils of the said ridings; and for other purposes.

[9th August 1966]

WHEREAS by the Yorkshire Registries Act, 1884 (hereinafter 1884 c. 54. referred to as “ the Act of 1884 ”), certain Acts theretofore in force under the provisions of which register offices were established for the registration of deeds, conveyances, wills, incumbrances and other matters affecting lands and hereditaments within the three ridings of the county of York and the city and county of Kingston upon Hull (therein referred to as “ the town and county of the town of Kingston-upon-Hull ”) were repealed and the said provisions consolidated and amended:

And whereas the county councils of the said ridings (hereinafter referred to as “ the three Councils ”) are by virtue of the Local Government Act, 1888, the authorities for administering the 1888 c. 41. Act of 1884 within their respective ridings:

And whereas with a view to reducing the space required to accommodate the many registers, books, indexes and other documents kept and to be kept at the three register offices established under the Act of 1884, it is expedient to authorise each

of the three Councils at the appropriate time to keep such registers, books, indexes and other documents in the form of microfilm recordings as by this Act provided:

And whereas it is expedient that provisions should be enacted whereby registration by memorial may be abolished as by this Act provided:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

1933 c. 51. And whereas in relation to the promotion of the Bill for this Act the three Councils have complied with the requirements of Part XIII of the Local Government Act, 1933:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short title. 1. This Act may be cited as the Yorkshire Registries Amendment Act 1966.

Division of Act into Parts. 2. This Act is divided into Parts as follows:—
 Part I.—Preliminary.
 Part II.—Microfilm recording.
 Part III.—Abolition of registration by memorial.
 Part IV.—Finance and general.

Interpretation. 3.—(1) In this Act the several words and expressions to which meanings are assigned by the Act of 1884 have the same respective meanings, unless there be something in the subject or context repugnant to such construction and—

1884 c. 54 “the Act of 1884” means the Yorkshire Registries Act, 1884;

“enactment” includes an enactment in this Act or in any general or local Act and any order, byelaw, scheme, rule or regulation made under an Act;

“the first appointed day” means, in relation to the area within the jurisdiction of a registry, the day upon which the provisions of Part II of this Act come into operation in that area;

“ microfilm recording ” means a reproduction of a register, book, index or other document or instrument, or part thereof, on film, which is a product of photography or any process akin to photography and is in general beyond legibility with the naked eye;

“ the second appointed day ” means, in relation to the area within the jurisdiction of a registry, the day upon which the provisions of Part III of this Act come into operation in that area.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment, including this Act.

PART II

MICROFILM RECORDING

4. This Part of this Act shall come into operation in relation to the area within the jurisdiction of a registry on such day as the Lord Chancellor may by order made by statutory instrument appoint. Commence-
ment of
Part II of
Act.

5.—(1) Subject to the provisions of this Act and of any rules made thereunder, any instrument or memorial thereof which is presented for enrolment in the register on or after the first appointed day shall be enrolled by making and retaining in the register office a microfilm recording of the instrument at full length or a microfilm recording of the memorial thereof. Enrolment of
microfilm
recordings.

(2) For the purposes of this Part of this Act the following provisions shall have effect as from the first appointed day in relation to the area within the jurisdiction of the registry:—

(a) “ enrolment ” where used in the Act of 1884 shall include enrolment in the manner described in the foregoing subsection and “ enrol ” shall be construed accordingly;

(b) “ registration ” where used in the Act of 1884 shall include registration by enrolment as aforesaid and “ register ” and “ the register ” shall be construed accordingly;

(c) any reference in the Act of 1884 to the volume and page of the register shall be deemed to include a reference to the magazine in which the microfilm recording of an instrument or memorial thereof is kept and the image number of the microfilm recording in that magazine;

(d) “ copy ” where used in the Act of 1884 in relation to an instrument or memorial thereof registered under that Act and any other books and indexes which may be

PART II
—cont.

required to be kept at the register office under that Act, or any rules made thereunder, or any entries in such books and indexes, shall include a copy of an enlargement of a microfilm recording thereof and, for the purposes of comparison under section 23 of the Act of 1884, a visual enlargement of a microfilm recording;

- (e) “extract” where used in the Act of 1884 in relation to an instrument or memorial thereof registered under that Act and any other books and indexes which may be required to be kept at the register office under that Act, or any rules made thereunder, or any entries in such books and indexes, shall include an extract from an enlargement of a microfilm recording thereof;
- (f) the provisions of section 24 of the Act of 1884 shall cease to have effect but the registrar shall sign each instrument or memorial thereof and seal it with the seal of the register office before enrolment thereof;
- (g) without prejudice to any rules for the time being made under the Act of 1884 in relation to any part of the register and any book or index which is kept at the register office in the form of a microfilm recording the rights conferred by section 19 of the Act of 1884 shall be exercised only by using such equipment as is for the time being provided by the county authority for that purpose.

Microfilm
recording of
existing
register and
other records.

6.—(1) On and after the first appointed day the county authority may, in lieu of keeping at the register office any volume of the register in which instruments or memorials have been enrolled before that day and any other book, index or record which relates to or comprises an instrument or memorial enrolled before or after that day and which may be required to be kept there under the Act of 1884, or any rules made thereunder, make and retain in the register office a microfilm recording of the contents of such volume, book, index or record.

(2) Where the county authority, in lieu of keeping at the register office any volume of the register or any book or index relating thereto, make and retain a microfilm recording of the contents of such volume, book or index under the powers of subsection (1) of this section—

- (a) there shall be endorsed on any certified copy of or extract from any memorandum of charge, caveat, notice or affidavit enrolled in that volume, or of or from any entry in that volume or in any book or index relating thereto, which is given to any person in pursuance of section 22 of the Act of 1884 a certificate signed by the registrar and sealed with the seal of the register office

stating that the volume of the register containing such memorandum of charge, caveat, notice, affidavit, or entry, as the case may be, or the book or index relating thereto, is no longer kept at the register office and every such certificate so signed and sealed shall be conclusive evidence of the facts stated therein;

PART II
—cont.

- (b) notwithstanding anything in any enactment or rule of law to the contrary, no person shall be required to produce any memorandum of charge, caveat, notice or affidavit which has been enrolled in such a volume, or any entry in that volume or in any book or index relating thereto, if he produces a certified copy thereof or extract therefrom upon which is endorsed such a certificate as is referred to in paragraph (a) of this subsection.

PART III

ABOLITION OF REGISTRATION BY MEMORIAL

7. This Part of this Act shall come into operation in relation to the area within the jurisdiction of a registry on such day, not being earlier than the day upon which the provisions of Part II of this Act come into operation in that area, as the Lord Chancellor may by order made by statutory instrument appoint.

Commence-
ment of
Part III of
Act.

8.—(1) As from the second appointed day no memorial of any instrument shall be enrolled in the register and any instrument which is presented for enrolment on or after that day shall be enrolled by making and retaining in the register office a microfilm recording of the instrument at full length.

Registration
by memorial
abolished.

(2) The provisions of section 5 (Enrolment of microfilm recordings) of this Act shall extend and apply on and after the second appointed day for the purposes of this section with the following modifications:—

- (a) in subsection (1), the words “or memorial thereof” and the words “or a microfilm recording of the memorial thereof” shall be omitted;
- (b) in paragraphs (c), (d), (e) and (f) of subsection (2), the words “or memorial thereof” shall be omitted.
- (3) As from the second appointed day—
- (a) section 43 of the Act of 1884 shall have effect in relation to the area within the jurisdiction of the registry as if after the word “recognizance”, where it occurs the third time, there were inserted the words “but not a memorial thereof”;

PART III
—cont.

- (b) the provisions of the Act of 1884 specified in columns (2) and (3) of Part I of the schedule to this Act shall in relation to the area within the jurisdiction of the registry cease to have effect to the extent specified in column (4) of that Part of that schedule;
- 1925 c. 20. (c) the provisions of the Law of Property Act, 1925, specified in columns (2) and (3) of Part II of the said schedule shall in relation to the area within the jurisdiction of the registry cease to have effect to the extent specified in column (4) of that Part of that schedule:

Provided that nothing in this paragraph shall affect the operation of any memorial registered before the second appointed day.

PART IV

FINANCE AND GENERAL

Power to borrow.

9.—(1) The county authority may borrow—

- (a) such sums as may be necessary for any of the purposes of this Act;
- (b) without the consent of any sanctioning authority, such sums as may be necessary for the payment of the sum payable by them in pursuance of section 13 (Costs of Act) of this Act;

1933 c. 51. and, subject to the provisions of this section, Part IX of the Local Government Act, 1933, shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The county authority shall repay sums borrowed under paragraph (b) of the foregoing subsection within five years from the date of borrowing.

1946 c. 58. (3) It shall not be lawful to exercise the powers of borrowing conferred by paragraph (a) of subsection (1) of this section except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act, 1946.

Extension of section 35 of Act of 1884.

10.—(1) The provisions of section 35 of the Act of 1884 shall extend so as to enable the county authority to make, rescind, amend or add to any rules which they may consider expedient for the purposes of this Act, but no such rules shall have effect before the first appointed day and no rules made for the purposes of Part III of this Act shall have effect before the second appointed day.

(2) (a) No rule made under section 35 of the Act of 1884 for the purposes of Part III of this Act shall require the presentation for enrolment of the original or one of the originals of any

instrument unless such rule enables a person presenting for enrolment an instrument operating to transfer or create a legal estate for value to require the registrar to omit from any microfilm recording of that instrument any reference to the consideration paid thereunder or the stamp duty paid thereon:

PART IV
—cont.

Provided that nothing in this subsection or in any such rule shall render it obligatory on the registrar to enrol any instrument with the omission of any such reference unless the consideration and the stamp duty so paid are indicated in such a form and in such a place that they can conveniently be omitted from the microfilm recording of the instrument.

(b) In this subsection “legal estate” has the same meaning as in the Law of Property Act, 1925.

1925 c. 20.

11. Not less than three months before the first appointed day, Publication in the case of a notice referred to in paragraph (a) of this section, of notices. and not less than three months before the second appointed day, in the case of a notice referred to in paragraph (b) of this section, the county authority shall publish in the London Gazette and in such other manner as the Lord Chancellor may direct—

(a) a notice in such form as the Lord Chancellor may approve containing a concise summary of the provisions of Part II of this Act and of any rules made under section 35 of the Act of 1884 which are relevant thereto and the date upon which those provisions are to have effect in relation to the area within the jurisdiction of the registry;

(b) a notice in such form as the Lord Chancellor may approve containing a concise summary of the provisions of Part III of this Act and of any rules made under the said section 35 which are relevant thereto and the date upon which those provisions are to have effect in relation to the area within the jurisdiction of the registry.

12. The county authority may provide and maintain such Provision of equipment as may be necessary or expedient for the purposes of equipment. this Act.

13. The costs, charges and expenses preliminary to and of Costs of and incidental to the preparing, applying for, obtaining and Act. passing of this Act or otherwise in relation thereto shall be paid by the county authorities out of the county funds of those authorities in such manner as may be agreed between them.

Section 8.

SCHEDULE

ENACTMENTS CEASING TO HAVE EFFECT AS FROM THE SECOND APPOINTED
DAY

PART I

Act (1)	Section (2)	Marginal note (3)	Provisions ceasing to have effect (4)
The Act of 1884	5	Mode of registration	In paragraph (A) of subsection (1), the words " a memorial thereof prepared in accordance with the provisions of this Act and any rules made thereunder, or " and the words " at the option of the person registering the same ". In paragraph (B) of subsection (1), the words " or a memorial thereof prepared in accordance with the provisions of this Act, and any rules made thereunder ". In subsection (2), the words " or memorial thereof " in the three places where those words occur. In subsection (3), the words " or memorial thereof " in the three places where those words occur.
	6	Memorials	The whole section.
	9	Endorsement on deed or will after registration	The words " or a memorial thereof is or ".
	18	Registration	The words " or memorials of which " and, in the proviso, the words " or memorials " in both places where those words occur.
	35	Rules	The word " memorials ".
	43	Registering of memorials, &c. where assurance, &c. executed before commence- ment of Act, &c.	The words " or of a memorial thereof ".

PART II

SCH.
—cont.

Act (1)	Section (2)	Marginal note (3)	Provisions ceasing to have effect (4)
The Law of Property Act, 1925	11	Registration in Middlesex and Yorkshire as respects legal estates	In subsection (1), the words “ a memorial 1925 c. 20. of ” and “ of a memorial ”. In subsection (3), the words “ Memorials of ”.
	197	Notice of memorials in Middlesex and Yorkshire	In subsection (1), the words “ of a memorial ”. In subsection (2), the words “ of a memorial ”.



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CHAPTER xxvi

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SCHEDULE—Enactments ceasing to have effect as from the
second appointed day.